

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUPL061341: ANTONIO VAZQUEZ vs JAGUAR LAND ROVER NORTH
AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY
07/14/2026 in Department 44
Demurrer**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

MOTION: Plaintiff Antonio Vazquez’s (“Plaintiff”) demurrer to Defendant Jaguar Land Rover North America, LLC’s (“Defendant”) amended answer.

Tentative Ruling:

Plaintiff’s demurer to the amended answer is sustained in party, and overruled in part, as set forth below.

Defendant has 20 days to file a first amended answer.

Plaintiff shall give notice.

I. Relevant Background

On February 11, 2026, Plaintiff sued Defendant under the Song-Beverly Consumer Warranty Act alleging three causes of action for breach of express warranty, breach implied warranty, and failure to make timely repairs to Plaintiff’s 2021 Land Rover Range Rover (“Vehicle”)

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(“Complaint”). Plaintiff acquired the new vehicle on August 27, 2021 with warranties that included a 4-year or 50,000 basic warranty and a 4-year or 50,000 powertrain warranty.

Defendant filed an answer to the Complaint on April 3, 2026 in which Defendant asserted a general denial and thirty affirmative defenses.

On May 8, 2026, Defendant filed an amended answer, which is Defendant’s operative pleading (“Amended Answer”). In the Amended Answer, Defendant asserts a general denial, makes general allegations and again asserts thirty affirmative defenses.

On May 20, 2026, Plaintiff demurred to the Amended Answer pursuant to Code of Civil Procedure, section 430.20(a) or 430.30(b) for failure to state facts sufficient to state a defense, and under Code of Civil Procedure section 430.20(b) for uncertainty as to the following affirmative defenses: 2nd, 3rd, 4th, 5th, 6th, 7th, 8th, 9th, 10th, 11th, 12th, 13th, 14th, 15th, 16th, 17th, 18th, 20th, 21st, 22nd, 23rd, 25th, 26th, and 28th. Plaintiff further asserts that the 30th affirmative defense is uncertain under Code of Civil Procedure section 430.20(b).

Additionally, Plaintiff asserts the 19th affirmative defense violates Code of Civil Procedure section 458, and the 24th and 29th affirmative defenses are not legally cognizable affirmative defenses.

Defendant did not file an opposition to the demurrer.

II. Discussion:

A. Preliminary Matters

Conformity with Rules of Court. The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules, 2.256(b) and 3.1110(f).) Counsel’s compliance with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court’s issuance of a decision on the merits. Noncompliance with these rules may cause delay in the proceedings, or the Court may disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Plaintiff’s papers do not conform with the rules of Court in that they are not properly bookmarked or labeled. Nonetheless, the Court will consider the papers in this filing. Counsel are admonished to file compliant papers going forward.

B. Legal Standard on Demurrer

The statutory grounds for a demurrer to an answer are set forth in Code of Civil Procedure section 430.20 and 430.30. In deciding a demurrer to an answer, the court’s limited role is to test the legal sufficiency of a answer. It is long settled that a demurrer admits all material facts

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properly pleaded, but not contentions, deductions, or conclusions of law or fact. A court may also consider matters that may be judicially noticed. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 976, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591; *South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) .) The complaint is given a reasonable interpretation, and is read as a whole, reading its parts in their context. (*Blank v. Kirwan, supra*, 39 Cal.3d at p. 318.)

It is an abuse of discretion to deny leave to amend if there is any reasonable possibility that any defects in the complaint can be cured by amendment. But the burden is on the plaintiff to show how the complaint can be amended and how such an amendment will change the legal effect of the pleading. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

C. Application

The Court has reviewed Plaintiff's demurrer as to each affirmative defense raised by the Amended Answer, and as to each, rules as follows:

The Demurrer to Defendant's Amended Answer is OVERRULED as follows:

To the Third Affirmative Defense that the Vehicle is fit for its intended purpose.

To the Fourth Affirmative Defense, No Timely Revocation of Acceptance

To the Fifth Affirmative Defense, Unreasonable or Unauthorized Use

To the Seventh Affirmative Defense, Misuse, Abuse, Improper Maintenance or Other Exclusion

To the Eighth Affirmative Defense, Failure to Comply with Notice Requirements

To the Ninth Affirmative Defense, Good Faith Evaluation

To the Fourteenth Affirmative Defense, Plaintiff's Failure to Maintain Vehicle

To the Fifteenth Affirmative Defense, Intervening/Superseding/Supervening Events

To the Sixteenth Affirmative Defense, Failure to Mitigate

To the Eighteenth Affirmative Defense, Wrong Party

To the Twentieth Affirmative Defense, Unauthorized Use

To the Twenty-Fifth Affirmative Defense, Express Disclaimer of Warranty

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To the Twenty-Ninth Affirmative Defense, Defendant's Election to Arbitrate

The Demurer to Defendant's Amended Answer is SUSTAINED WITH LEAVE TO AMEND as follows:

To the Tenth Affirmative Defense, Estoppel, Laches, Lack of Good Faith

To the Thirteenth Affirmative Defense, Unclean Hands

To the Nineteenth Affirmative Defense, Statute of Limitations

The Demurrer to Defendant's Amended Answer is SUSTAINED WITHOUT LEAVE TO AMEND because the answer does not state facts sufficient to constitute a defense (Code Civ. Proc. § 430.20, subd. (a); *Timberridge Enters. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 879-880.), as follows:

To the Second Affirmative Defense, Duration of Implied Warranty.

To the Sixth Affirmative Defense, Failure to Preserve Evidence

To the Eleventh Affirmative Defense, No Privity of Contract

To the Twelfth Affirmative Defense, No Wrongful Conduct or Breach of Duty

To the Seventeenth Affirmative Defense, No Injury or Damage

To the Twenty-First Affirmative Defense, No Willful Conduct

To the Twenty-Second Affirmative Defense, Implied Warranty Limitation

To the Twenty-Third Affirmative Defense, Use Limitation

To the Twenty-Fourth Affirmative Defense, Dispute Resolution

To the Twenty-Sixth Affirmative Defense, No Proximate Cause

To the Twenty-Seventh Affirmative Defense, Failure to Permit Inspection and Repair

To the Twenty-Eighth Affirmative Defense, No Defect

To the Thirtieth Affirmative Defense, Reservation of Right to Add Affirmative Defenses